NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- IV)
C.A. (CAA)-09/ND/2022

IN THE MATTER OF SCHEME OF ARRANGEMENT:

AMONGST

ACL Mobile Limited

... Applicant No.1/Transferor Company 1

AND

ACL Technologies Private Limited

...Applicant No.2/ Transferor Company 2

WITH

Sinch Cloud Communication Services India Private Limited

...Applicant No.3/ Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on: 19.05.2022

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. DHARMINDER SINGH, HON'BLE MEMBER, (J)
MS. SUMITA PURKAYASTHA, MEMBER-TECHNICAL, (T)

ORDER

PER- SHRI DHARMINDER SINGH, MEMBER (JUDICIAL)

Under consideration is the Application No. C.A.(CAA)09/ND/2022 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer is made seeking dispensation/directions with respect to the meetings of shareholders and

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creditors of the Applicant Companies to consider the Scheme of Amalgamation. The said Scheme of Amalgamation, proposes merger of a part of the business of an existing companies to form new entity of the existing company.

2. M/s ACL Mobile Limited, (hereinafter referred as the **"Transferor Company 1")** having CIN no. UOOOODL2000PLC105516, is a Company limited by Share, incorporated under the Companies Act, 1956 on 28.04.2000. The registered office of the transferor company is situated at 104-107, Hemkunt Tower 98, Nehru Place, New Delhi 110019, India.

3. M/s ACL Technologies Private Limited, (hereinafter referred as the **"Transferor Company 2"**), having CIN no. U72900DL2000PTC105180 is a Private Company Limited by shares incorporated under the Companies Act, 1956 on 11.04.2000. The registered office of the resulting company is situated at 104-107, Hemkunt Tower 98, Nehru Place, New Delhi 110019, India.

4. M/s Sinch Cloud Communication Services India Private Limited, (hereinafter referred as the **"Resulting Company"**), having CIN no. U74999MH2017FTC294709 is a Private Company Limited by shares incorporated under the Companies Act, 2013. The registered office of the resulting company is situated at Private Cabin No TX B001 Basement Bhanti Solitaire Plot No 29, Sector 19D, behind Satra Plaza, Vashi Navi Mumbai, Thane MH 400705, India.

5. The present application has been jointly filed by transferor companies and together are called 'Applicant Companies' hereinafter. That the Registered

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offices of both the Companies are in Delhi and therefore, the jurisdiction lies with this Bench.

6. It is seen from the record that the Board of Directors of all the Applicant Companies, vide separate meetings held on 01.09.2020, have approved the proposed 'Scheme of Amalgamation'.

7. It is stated by the Applicant Companies that the following objectives are sought to be achieved by way of Amalgamation:

> *a. "The Scheme will lead to simplification of group structure, thereby resulting in reduction of multiplicity of legal and regulatory compliances, reduction of costs and optimal utilization of common resources.*
> *b. The Scheme will lead to consolidation of business(es) to ensure more focused operational efforts and synergies, efficient functioning, and reduced overhead expenses.*
> *c. The Scheme will provide for greater integration and financial strength, and will improve the competitive position of the combined entity."*

8. All the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013, submitting therein that none of the Applicant Companies are under any prosecution/ investigation/ inquiry under Companies Act 2013.

9. The Applicant Companies have also placed on record the Certificate from the Statutory Auditors, confirming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

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10. The Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheets as on 31.03.2021.

11. The position regarding the Applicant Companies wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised hereunder:

Company	No. Of Shareholders	Consent Given (%)	No. Of Secured Creditors	Consent Given (%)	No. Of Un-Secured Creditors	Consent Given (%)
Transferor Company 1	7	99.99 %	1	100%	98	NIL
Transferor Company 2	2	99.99 %	NIL	N.A.	2	99.74%
Transferee Company 1	2	99.99 %	NIL	N.A.	6	97.80%

12. The applicants further affirmed that the Scheme is not prejudicial to the interests of the shareholders, and creditors of the applicant companies. Rather, the same may be beneficial to all the applicant companies and their respective shareholders, and creditors.

13. With regards the Transferor Company No.1 it is stated as under:

a) The company has 7 equity shareholders and nil preference shareholders, certificate from Chartered Accountants certifying list of shareholders is annexed and all of them have given their respective consents by way of affidavits holding 100% of voting share.

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b) The company has 1 secured creditor, certificate from Chartered Accountant certifying list of secured creditor is annexed, who has given consent by way of affidavits holding 100% of total value of debt.

c) The company has 98 unsecured creditors, certificate from Chartered Accountants certifying list of unsecured creditors is annexed and no consent is been given by them.

In relation to the equity shareholders, secured creditor and unsecured creditors it seeks dispensing with holding/convening of the meetings as their consent affidavits are placed on record. Since there is no preferential shareholder therefore the necessity of convening/holding a meeting does not arise.

14. With regards the Transferor Company No.2 it is stated as under:

a. The company has 2 equity shareholders and nil preference shareholders, certificate from Chartered Accountants certifying list of shareholders is annexed and all of them have given their respective consents by way of affidavits holding 100% of voting share.

b. The company has NIL secured creditors; hence requirement of consent is not required.

c. The company has 2 unsecured creditors, certificate from Chartered Accountants certifying list of unsecured creditors is annexed and consent is been given by 1 by way of affidavits holding 99.74%.

In relation to the equity shareholders, secured creditor and unsecured creditors it seeks dispensing with holding/convening of the meetings as their consent affidavits are placed on record. Since there is no preferential

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shareholder therefore the necessity of convening/holding a meeting does not arise.

15. With regards the Transferee Company it is stated as under:

a) The company has 2 equity shareholders, nil preference shareholders, certificate from Chartered Accountants certifying list of shareholders is annexed and consent is given by one of the equity shareholders by way of affidavits holding 99.99% of voting share.

b) The company has NIL secured creditors; hence requirement of consent is not required.

c) The company has 6 unsecured creditors, certificate from Chartered Accountants certifying list of unsecured creditors is annexed and 1 creditors out of the total have given their consent by way of consent affidavits holding 97.80% in total value of debt.

16. Taking into consideration the submissions and the documents placed on record, we propose to issue the following directions with respect to convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices including by way of paper publication as follows: -

A. <u>In relation to the Transferor Company No.1:</u>

a. **With respect to Secured Creditor:** In view of consent affidavit from sole secured creditor having 100% of the debt been filed, convening the meeting of secured creditor/members is dispensed with.

b. **With respect to the shareholders:** In view of consent affidavit from sole secured creditor having 100% of the debt been filed, convening the meeting of secured creditor/members is dispensed with.

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c. **With respect to Unsecured Creditors:** There are 98 unsecured creditors of the transferor company no. 1. Since, the unsecured creditors have not given their consent, therefore, the meeting of unsecured creditors shall be held in terms of the following directions: -

a. The meeting shall be held on 30.06.2022 at 10 A.m. at the registered office of the transferor company no. 1.

b. The quorum of the meeting shall be 75% in-value.

B. <u>In relation to the Transferor Company No.2:</u>

a. **With respect to shareholders:** In view of consent affidavits, from one the equity shareholders having 99.99% voting share been filed, convening the meeting of shareholders/members is dispensed with.

d. **With respect to Secured Creditors:** There are no secured creditors, convening the meeting of secured creditor/member is dispensed with.

b. **With respect to Unsecured Creditors:** In view of consent affidavit, from the one Unsecured creditors having 97.80% of total debt been filed, convening the meeting of Unsecured creditors is dispensed with.

C. <u>In relation to the Transferee Company:</u>

a. **With respect to shareholders:** In view of consent affidavits, from one the equity shareholders having 99.99% voting share, been filed convening the meeting of shareholders/members is dispensed with.

b. **With respect to preference shareholder:** There is no preference shareholders, hence convening the meeting of preferential shareholders/members is dispensed with.

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c. **With respect to Secured Creditors:** There are no secured creditors, convening the meeting of secured creditor/member is dispensed with.

d. **With respect to Unsecured Creditors:** In view of consent affidavit, from one unsecured creditors having 97.80% of total debt been filed, convening the meeting of Unsecured Creditors is dispensed with.

D. Shri Amit Sain, Advocate, P/475/97, 9810324108 is appointed as the Chairperson and Ms. Vasundhara, PH/385/2021, 8397878778, is appointed as Alternate Chairperson and, Ms. Shivani Arora, 8826263888, is appointed as the Scrutinizer for the meeting of the applicant companies, as has been directed to be convened by this Tribunal.

E. The Fee for the Chairperson for the aforesaid meeting shall be Rs. 1,50,000/- and the fee of the Alternate Chairperson and the Scrutinizer shall be Rs. 1,25,000/- each in addition to meeting their incidental expenses. The Chairperson will file their report within 2 weeks from the closing of the e-voting and/ or postal ballot.

F. The individual notices of the said meetings shall be sent as required and prescribed by the Companies Act, 2013 through registered post or speed post or through courier or through e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, place and time as aforesaid, together with a copy of scheme of arrangement and, a copy of explanatory statement. The prescribed form of proxy shall be sent along with and in

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addition to the above documents, any other documents as may be prescribed under the Act may also be provided.

G. That the applicant companies shall publish advertisement with a gap of at least 30 clear days before the aforesaid meetings, indicating the day, date, place and time as aforesaid, to be published in the English Daily 'Business Standard' (Delhi Edition) and Hindi Daily 'Jansatta' (Delhi Edition) stating the copies of Scheme, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the Applicant Companies.

H. Voting will be made through remote e-voting process in compliance with the guidelines issued by the Ministry of Corporate Affairs in this regard.

I. The Applicants shall individually send notice to the Central Government, the Income Tax Authorities, concerned Registrar of Companies, NCT of Delhi & Haryana, Official Liquidator, and any sectoral regulators who may have significant bearing on the operation of the applicant companies, along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

J. All the aforesaid directions are to be complied with, strictly in accordance with the applicable law, including forms and formats contained in the

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Companies (Compromises, Arrangements, Amalgamations) Rules, 2016, as well as the provisions of the Applicant Companies Act, 2013 by the Applicants.

The application stands allowed in the aforesaid terms.

Let the copy of the order be served to the parties.

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(SUMITA PURKAYASTHA)
MEMBER (TECHNICAL)

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(DHARMINDER SINGH)
MEMBER (JUDICIAL)